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SUPERIOR COURT OF WASHINGTON FOR EVERGREEN COUNTY

STATE OF WASHINGTON, Plaintiff, v. **DANIEL MARSH,** Defendant.	**No. 00-1-00000-0 SAMPLE** **DEFENDANT'S MOTION TO SUPPRESS EVIDENCE (CRR 3.6)**

I. RELIEF REQUESTED

Defendant Daniel Marsh moves under CrR 3.6 to suppress the handgun taken from the center console of his car on March 14, 2025, and all evidence that flows from that search. Mr. Marsh requests an evidentiary hearing.

II. FACTS EXPECTED AT THE HEARING

On March 14, 2025, at about 9:40 p.m., Deputy R. Holt stopped Mr. Marsh's car for expired registration tabs. **Ex. A** at 1. Mr. Marsh pulled into the parking lot of a grocery store and parked in a marked stall. **Ex. A** at 1. A records check showed a suspended license. Deputy Holt arrested Mr. Marsh for driving while license suspended, handcuffed him, and placed him in the back of the patrol car at 9:52 p.m. **Ex. A** at 1; **Ex. C** at 1.

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Deputy Holt then searched the car at 9:58 p.m. He had no warrant and did not ask for consent. **Ex. A** at 1. He opened the closed center console and found a handgun. **Ex. A** at 2. Mr. Marsh told him that his wife could pick up the car and that she was ten minutes away. Deputy Holt answered, "We'll deal with the car after." **Ex. C** at 1. The tow was not requested until 10:21 p.m., after the gun was found. **Ex. B**. The tow record lists no hazard and no reason the car could not stay in its stall. **Ex. B**.

Mr. Marsh is charged with unlawful possession of a firearm in the second degree.

III. ISSUE

Was the warrantless search of the car lawful under article I, section 7 of the Washington Constitution and the Fourth Amendment when the driver was handcuffed in a patrol car, the arrest was for a license offense, and the car was lawfully parked?

IV. EVIDENCE RELIED UPON

This motion relies on **Exhibits A** through C and the testimony expected at the hearing.

V. AUTHORITY

A. The State bears the burden of justifying this warrantless search.

Warrantless searches are per se unreasonable under the Fourth Amendment and article I, section 7. State v. Garvin, 166 Wn.2d 242, 249, 207 P.3d 1266 (2009). The State bears a heavy burden to show the search falls within a narrowly drawn exception, and it must do so by clear and convincing evidence. Id. at 250.

B. This was not a lawful search incident to arrest.

Police may search a vehicle incident to a recent occupant's arrest only if the arrestee is within reaching distance of the passenger compartment at the time of the search or it is reasonable to believe the vehicle contains evidence of the offense of arrest. Arizona v. Gant, 556 U.S. 332, 351, 129 S. Ct. 1710, 173 L. Ed. 2d 485 (2009). Article I, section 7 is

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narrower still. The Washington Supreme Court has held that no equivalent to Gant's evidence-of-the-crime exception is permissible under our constitution. State v. Snapp, 174 Wn.2d 177, 182, 275 P.3d 289 (2012).

The facts here match Gant. Rodney Gant was arrested for driving with a suspended license, handcuffed, and locked in a patrol car before officers searched his car. 556 U.S. at 335. Mr. Marsh was too. He could not reach the console. **Ex. C** at 1. And a suspended license is "an offense for which police could not expect to find evidence in the passenger compartment." Id. at 344. The search fails under both constitutions.

C. The State cannot rely on an inventory search.

An inventory search requires a lawful impound. Officers "must also consider reasonable alternatives to impoundment, and if they fail to do so, any subsequent search may be found unlawful." State v. Tyler, 177 Wn.2d 690, 708, 302 P.3d 165 (2013). Tyler upheld an inventory because the car threatened public safety where it stood and the deputy explored alternatives. Id. at 700.

This case is the reverse. The car was parked in a marked stall. **Ex. A** at 1. Mr. Marsh offered a licensed driver who was ten minutes away, and Deputy Holt put him off. **Ex. C** at 1. The tow was not called until after the search. **Ex. B**. A search that came first cannot be justified by an impound decided on afterward.

D. The evidence must be suppressed.

A violation of article I, section 7 automatically implies the exclusion of the evidence seized, and Washington rejects a good faith exception. State v. Afana, 169 Wn.2d 169, 179, 233 P.3d 879 (2010). The handgun and its fruits must be suppressed.

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VI. CONCLUSION

The Court should set an evidentiary hearing and suppress the handgun and all evidence derived from the search.

DATED this 3rd day of November, 2026.

/s/ Daniel Marsh

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Daniel Marsh, Defendant Pro Se

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CERTIFICATE OF SERVICE

I declare that on November 3, 2026, I served a true and correct copy of this document on the Evergreen County Prosecuting Attorney. I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

DATED this 3rd day of November, 2026.

/s/ Daniel Marsh

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Daniel Marsh, Defendant Pro Se

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EXHIBIT A

Deputy's incident report, March 14, 2025

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EVERGREEN COUNTY SHERIFF'S OFFICE

INCIDENT REPORT

Date / time	March 14, 2025, 21:40
Reporting deputy	Dep. R. Holt
Subject	Daniel Marsh
Location	Parking lot, Lakeview Market

Narrative

I saw a gray sedan with registration tabs expired since 2024 and activated my lights. The driver pulled into the Lakeview Market lot and parked in a marked stall. I contacted the driver, Daniel Marsh. A records check showed his license was suspended in the third degree.

At 21:52 I arrested Marsh for DWLS 3, handcuffed him, and secured him in the rear of my patrol car. No one else was in the vehicle.

At 21:58 I searched the passenger compartment of the sedan incident to arrest. I did not request consent and did not have a warrant.

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Narrative (continued)

I opened the closed center console and located a black 9mm handgun. A records check showed that Marsh has a prior conviction that bars him from possessing a firearm.

I requested a tow at 22:21 and booked the handgun into evidence.

/s/ Dep. R. Holt

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EXHIBIT B

Vehicle tow record

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NORTHSIDE TOWING

VEHICLE TOW RECORD

Field	Entry
Requested by	Dep. R. Holt
Time of request	22:21
Arrival	22:48
Vehicle	Gray sedan
Location	Lakeview Market lot, marked stall
Reason	Driver arrested
Hazard noted	None
Property owner request	None

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EXHIBIT C

Body camera transcript excerpt

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Body camera transcript excerpt

Dep. R. Holt, March 14, 2025

Time	Speaker	Words
21:52:10	Dep. Holt	Turn around. Hands behind your back.
21:53:02	(Audio)	Patrol car door closes. Marsh is seated, handcuffed.
21:54:30	Marsh	My wife can get the car. She's ten minutes away.
21:54:36	Dep. Holt	We'll deal with the car after.
21:58:05	Dep. Holt	Going through the car now.

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